

24NNCV00427 24NNCV00427

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-09-15

Motion: PLAINTIFFS' MOTION FOR SUMMARY ADJUDICATION; DEFENDANTS' MOTION FOR LEAVE TO WITHDRAW AND AMEND RESPONSES TO PLAINTIFF'S REQUESTS FOR ADMISSION, SET ONE; ORDER TO SHOW CAUSE RE: SANCTIONS

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2C3%2C09%2F15%2F2026

Source SHA-256: 2876469c52be71521973ca225168e30e87e1981df120f5c7af4328d986ba2ca0

Case Number: 24NNCV00427 Hearing Date: September 15, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JAMES
MATYAS, et al.,

Plaintiff(s),

vs.

WEAVER
& ASSOCIATES, INC., et al.,

Defendant(s).

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 24NNCV00427

[TENTATIVE]

ORDER RE: PLAINTIFFS' MOTION FOR SUMMARY ADJUDICATION; DEFENDANTS'

MOTION FOR LEAVE TO WITHDRAW AND AMEND RESPONSES TO PLAINTIFF'S REQUESTS FOR
ADMISSION, SET ONE; ORDER TO SHOW CAUSE RE: SANCTIONS

Dept.

3

8:30

a.m.

September

15, 2026

)

1.

PLAINTIFFS'

MOTION FOR SUMMARY ADJUDICATION

Plaintiffs James Matyas ("Matyas") and Eugene Robison Company, Inc. dba Oxford Risk Management & Insurance Services ("Oxford") (collectively "Plaintiffs") filed this motion for summary adjudication on "specific issues of liability."

Defendants Weaver & Associates, Inc. ("Weaver & Associates"), Ralph Weaver, Matthew Weaver, Dana Dattola, and Denise Weaver (collectively, "Defendants") filed an opposition brief on August 26, 2026, arguing that Plaintiffs' motion improperly sought summary adjudication of "issues of liability" while reserving the issue of damages for trial. (Paramount Petroleum Corp. v. Superior Court (2014) 227 Cal.App.4th 226, 242-244.)

In a reply brief filed on September 4, 2026, Plaintiffs conceded that parts of their motion were improper because it would not completely dispose of a cause of action but maintained that the motion properly sought to summarily adjudicate Defendants' affirmative defense of waiver and the existence of Weaver & Associates' contractual duties.

Plaintiffs' motion for summary adjudication is DENIED as procedurally defective in several respects. First, "[i]f summary adjudication is sought, ... the specific ... affirmative defense ... or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts." (California Rules of Court, rule 3.1350, subds. (b), (d).) Plaintiffs' separate statement is 24 pages long and lists 12 facts without differentiating the numerous issues sought to be summarily adjudicated and the corresponding facts that support each issue. It also would be improper for Plaintiffs to claim that all 12 facts support each of the 8 issues identified in the notice of motion when some of them are clearly not material.

Second, the separate statement does not properly cite to the evidence because it does not include reference to the "exhibit, title, page, and line numbers" or follow the format for separate statements. (Id., subds. (d)(3), (h); see also Code Civ. Proc., § 437c, subd. (b)(1) [each of the material facts shall be followed by a reference to the supporting evidence].) These problems are compounded by the fact that Plaintiffs' supporting evidence consists of the Declaration of Neva Cirkveni, a

declaration filed in two volumes consisting of 750 and 795 pages without electronic bookmarks as required by CRC 3.1110, subd. (f)(4). "Judges are not like pigs, hunting for truffles buried in" the record. [Citation]." (Albrechtsen v. Bd. of Regents of Univ. of Wisconsin Sys. (2002) 309 F.3d 433, 436.)

In light of the foregoing, the motion for summary adjudication is DENIED in its entirety.

II.

MOTION

FOR LEAVE TO WITHDRAW AND AMEND RESPONSES TO PLAINTIFF'S REQUESTS FOR ADMISSION, SET ONE

A.

Factual
and Procedural Background

On July 23, Defendants filed this motion for leave to withdraw their responses to plaintiff James Matyas' Requests for Admission, Set One, as follows:

1.

Denise
Weaver's responses to RFA Nos. 4 and 10

2.

Matthew
Weaver's response to RFA No. 1

3.

Ralph
Weaver's response to RFA No. 10

4.

Weaver
& Associates' response to RFA Nos. 2, 3, 10, and 14.

Plaintiffs filed an opposition brief on August 10, 2026.

Defendants filed a reply brief on
August 17, 2026.

On August 24,
2026, the Court continued the hearing for the parties to submit supplemental
briefing and set an Order to Show Cause why Defendants and defense counsel
should not be sanctioned for previously misrepresenting the nature of
Defendants' discovery responses.

B.
Legal
Standard

"Any matter admitted in response to a
request for admission is "conclusively established against the party making the
admission in the pending action, unless the court has permitted withdrawal or
amendment of that admission." (Code Civ. Proc., § 2033.410, subd. (a).) An
admission may be withdrawn or amended upon noticed motion with leave of court.
(Code Civ. Proc., § 2033.300, subd. (a).) The court may permit withdrawal or
amendment of an admission only if it determines that the admission was the
result of mistake, inadvertence, or excusable neglect, and that the party who
obtained the admission will not be substantially prejudiced in maintaining that
party's action or defense on the merits. (Id., subd. (b).)

C.
Discussion

On July 15, 2026, the Court heard
Plaintiff's motion for evidentiary sanctions and struck 8 of Defendants' supplemental
responses to Plaintiff's RFAs. These supplemental responses were served on
March 5, 2026. The Court's reasoning was that admissions could not be withdrawn
or amended without leave of Court, which Defendants had not obtained.

The Court's ruling was premised on
Defendants' representations that the initial responses served on January 14,
2026 ("Initial Responses") were verified. However, recent briefing from both
parties confirms that they, in fact, were not verified. Accordingly, the
Initial Responses were tantamount to no responses at all and the motion is
DENIED as moot. (Appleton v. Superior Court (1988) 206 Cal.App.3d 632,
636.) The Court further revisits its July 15, 2026, order and vacates the

portion striking Defendants' supplemental responses as being served without leave of Court.

III.

ORDER

TO SHOW CAUSE RE: SANCTIONS FOR MISREPRESENTATIONS IN OPPOSING PLAINTIFF'S MOTION FOR EVIDENTIARY SANCTIONS

In opposing Plaintiff's motion for evidentiary sanctions, Mr. Hayden declared under penalty of perjury that "[a]ll Defendants served verified responses to Plaintiff's written discovery, Set One (Form Interrogatories, Special Interrogatories, Requests for Admission, and Requests for Production of Documents), on or about January 14, 2026. (6/17/2026 Declaration of Herbert J. Hayden, ¶ 3.) Defendants also argued against evidentiary sanctions claiming repeatedly that they obeyed the Court's January 28, 2026, Order to serve verified responses by doing so on March 5, 2026. (6/17/2026 Opposition to Plaintiff's Motion for Evidentiary Sanctions, pp. 3-4, 7.)

Both statements were misrepresentations because, as stated above, the Initial Responses were unverified and the Court's ruling on January 28, 2026, ordered Defendants to serve verified, objection-free responses within 20 days, which Defendants did not do. Defendants concede that these statements were inaccurate, but defense counsel argues that they were the result of oversight and not intended to mislead the Court. Defendants also argue that the misrepresentations did not affect the outcome on Plaintiff's motion for sanctions because the Court ultimately found Plaintiff's arguments to be meritless.

Given the inadvertent nature of defense counsel's error and the fact that the misrepresentations primarily served to avoid imposing sanctions on Plaintiff for unsuccessfully bringing his motion, the OSC is DISCHARGED.

IV.

CONCLUSION

Plaintiffs' motion for summary adjudication is DENIED.

Defendants' motion for leave to amend

or withdraw their responses to requests for admission is DENIED as moot.

The OSC re: Sanctions is DISCHARGED.

Defendants are ordered to give notice.

Dated

this 15th

day of July 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.